

Step 2: A Probability of Prevailing

Because Defendants have failed to establish that Plaintiff's claims arise from protected activity under section 425.16, subdivision (e), the Court need not reach the second prong of the anti-SLAPP analysis. (*Baral, supra*, 1 Cal.5th at p. 384 [holding that only if the defendant makes the threshold showing does the burden shift to the plaintiff to demonstrate a probability of prevailing on the merits].) Consequently, the Court does not reach Defendants' remaining arguments, including their assertion of the litigation privilege, or their various challenges to the sufficiency of the individual causes of action.

Attorney Fees

The Court denies Defendants' request for attorney fees because they did not prevail, and Plaintiff's request for fees is likewise denied.

Plaintiff requests an award of attorney fees and costs in the amount of \$15,685 under Code of Civil Procedure section 425.16, subdivision (c)(1). Under that provision, if the court finds that a special motion to strike is frivolous or solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney fees to a prevailing plaintiff pursuant to section 128.5. (*Moore v. Shaw* (2004) 116 Cal.App.4th 182, 198–199.) A determination of frivolousness requires a finding that the motion is "totally and completely without merit" (Code Civ. Proc., § 128.5, subd. (b)(2)), meaning that "any reasonable attorney would agree such motion is totally devoid of merit." (*Moore, supra*, at p. 199; see also *Clarity Co. Consulting, LLC v. Gabriel* (2022) 77 Cal.App.5th 454, 465.)

Here, the Court does not find that Defendants' motion was frivolous or brought in bad faith. Plaintiff's complaint discusses the 2016 probate proceedings extensively and frames the current controversy in light of that history. While the Court concludes that the claims ultimately do not fall within the scope of section 425.16, subdivision (e), the legal arguments advanced were understandable and within the range of issues reasonable counsel might raise. Nothing suggests the motion was brought solely to cause delay or harassment.

Even if the Court found the motion frivolous, it would deny fees because Plaintiff did not offer sufficient evidence to support his requested award of \$15,685. Under the lodestar method applicable to attorney fee awards under section 425.16, the court begins by determining the reasonable hours spent and multiplying that figure by a reasonable hourly rate. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135–1136.) The prevailing party bears the burden to present time records showing the hours spent on the motion. (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 396.) Counsel sets forth hourly rates of \$650 for himself and \$550 for an associate and requests a total sum of \$15,685. (Horst Decl., ¶¶ 8, 10.) However, the record contains no billing records or breakdown of the time spent on the motion. Without this information, the Court cannot verify that the fees were reasonably and necessarily incurred in connection with the motion. (See, e.g., *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.)

Disposition

Based on the foregoing, the motion is **denied**.

15. 9:00 AM CASE NUMBER: C26-00886
CASE NAME: TIJUANA JACKSON VS. MERCEDES-BENZ USA LLC, A LIMITED LIABILITY COMPANY
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: MERCEDES-BENZ USA LLC, A LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Before the Court is a motion by defendant Mercedes-Benz USA, LLC to compel arbitration and stay the action. For the reasons set forth, the motion is **granted**, and the action shall be **stayed** pending completion of the arbitration, except for periodic case management conferences as set by the Court to monitor the status of the arbitration.

Background

Plaintiff alleges that in August 2024, Plaintiff "acquired" a 2023 Mercedes-Benz EQB 80 vehicle. (Compl. ¶ 7.) She alleges that the vehicle was defective and could not be satisfactorily repaired. She alleges two causes of action against defendant Mercedes-Benz USA, LLC under the Song-Beverly Consumer Warranty Act, Civil Code section 1790, *et seq.* ("Song-Beverly Act") and a third cause of action for violation of the Unfair Competition Law, Business & Professions Code section 17200 *et seq.* ("UCL").

Mercedes-Benz moves to compel arbitration of Plaintiff's claims. The motion is supported by the declaration of Sybil Leung which attaches a copy of the California Motor Vehicle Lease Agreement dated August 4, 2024 entered into by Plaintiff as lessee with Mercedes-Benz of Walnut Creek as lessor (the "Lease"). (Leung Decl. Exh. 1.) The Lease includes a section titled "Important: Arbitration Disclosures" ("Arbitration Agreement") which sets forth the Arbitration Agreement Mercedes-Benz seeks to enforce. (Leung Decl. Exh. 1 pp. 4-5.) Plaintiff opposes the motion.

Procedure and Burden of Proof on Motion to Compel Arbitration

The Arbitration Agreement states that it "is governed by the Federal Arbitration Act, 9 U.S.C. § 1, *et seq.*" (the "FAA"). Defendant has also presented evidence that its business as an automotive dealership with repair facilities is involved in interstate commerce, such that the FAA governs on that ground as well. (Brandt Decl. ¶ 4; *Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 55-57 [the term "involving commerce" in the FAA is "the functional equivalent of the more familiar term 'affecting commerce'--words of art that ordinarily signal the broadest permissible exercise of Congress' Commerce Clause power. [Citation omitted.], holding the FAA applied to debt restructuring agreements even though the individual transactions in that case may not have actually been in interstate commerce]; *Allied-Bruce Terminix Cos., Inc. v. Dobson* (1995) 513 U.S. 265, 273-274 [broadly construing "involving interstate commerce" to mean "affecting" interstate commerce, and holding the FAA governed an arbitration agreement between a homeowner and local pest control company where the treatment products and repair materials were shipped from out of state].)

Whether the Arbitration Agreement is governed by the FAA or the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as unconscionability, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996)

14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.)

The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.

[Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

Existence of An Agreement to Arbitrate

There is no dispute regarding the existence of the Arbitration Agreement. Plaintiff does not contest that she signed the Lease which contains the Arbitration Agreement.

Right to Enforce Arbitration Agreement by Mercedes-Benz as Third Party Beneficiary

Ordinarily, only a party to an arbitration agreement can enforce it. (*Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal. App. 4th 830, 837.) There are several exceptions to that general rule, however, including the agency exception and the third party beneficiary exception. (*Id.* at 837-838.) Mercedes-Benz relies on the third party beneficiary exception.

The Arbitration Agreement in the Lease in this case states: "Any claim or dispute, whether in contract, tort or otherwise {including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a 'Third Party Beneficiary'), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of **either you, us, or a Third Party Beneficiary**, be resolved by a neutral, binding arbitration and not by a court action." (Leung Decl. Exh. 1, p. 4 of 10 [emphasis added].) The provision is unlike the arbitration provisions in the RISCs involved in the *Ford Motor Warranty Cases* and other decisions relied on by Plaintiff.

A. Third Party Beneficiary Elements

Civil Code section 1559 provides: "A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." The California Supreme Court explained the requirements for invoking the third party beneficiary doctrine in *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817: "[U]nder California's third party beneficiary doctrine, a third party—that is, an individual or entity that is not a party to a contract—may bring a breach of contract action against a party to a contract only if the third party establishes not only (1) that it is likely to benefit from the contract, but also (2) that a motivating purpose of the contracting parties is to provide a benefit to the third party, and further (3) that permitting the third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties." (*Id.* at 821; *Id.* at 829.) All three elements are required for the third party to be able to enforce the contract. (*Id.* at 829.)

In explaining the third element, the Court stated: "[T]he third element does not focus upon whether

the parties specifically intended third party enforcement but rather upon whether, taking into account the language of the contract and all of the relevant circumstances under which the contract was entered into, permitting the third party to bring the proposed breach of contract action would be 'consistent with the objectives of the contract and the reasonable expectations of the contracting parties.' [Citation omitted.] In other words, this element calls for a judgment regarding the potential effect that permitting third party enforcement would have on the parties' contracting goals, rather than a determination whether the parties actually anticipated third party enforcement at the time the contract was entered into." (*Id.* at 830-831.)

B. Ford Motor Warranty Cases and Other Authorities Cited by Plaintiff

Plaintiff contends Mercedes-Benz cannot enforce the Arbitration Agreement and relies on the Second District Court of Appeal decision cited by Plaintiff as *Ochoa v. Ford Motor Company* (2023) Case No. B312261. (Opp. p. 3, l. 6; see *Ford Motor Warranty Cases (Ochoa v. Ford Motor Company)* (2023) 89 Cal.App.5th 1324.) The California Supreme Court granted review in that case and subsequently rendered a decision resolving a split among the District Courts of Appeal in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, reversing the decision in *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486 that held a motor vehicle manufacturer could compel a plaintiff to arbitrate claims arising out of a Retail Installment Sale Contract ("RISC") under an equitable estoppel theory, which the California Supreme Court rejected. (*Ford Motor Warranty Cases, supra*, 17 Cal.5th at 1126, 1129, 133-1138.)

In the Court of Appeal decision in *Ford Motor Warranty Cases, supra*, 89 Cal.App.5th 1324, affirmed by the California Supreme Court, the Court addressed and rejected that the manufacturer in that case could enforce the arbitration provision of the RISC as a third party beneficiary. While recognizing that a nonsignatory to a contract can enforce a contract as a third party beneficiary, the Court held the three requirements for the third party beneficiary exception to apply had not been met in that case, in part based on the fact that the RISC did not designate the manufacturer as a third party beneficiary of the contract. (*Id.* at 1338-1340.) Plaintiff's opposition quotes that portion of the Court of Appeal decision addressing the third party beneficiary exception, stating "If the signatories had intended to benefit [Ford Motor Company, the manufacturer], such a purpose would have been easy to articulate. They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration. But they did not." (*Id.* at 1339 [emphasis added].) (See Opp. p. 3, ll. 12-14.) The Court in *Ford Motor Warranty Cases* did not state that the manufacturer's warranties had to be incorporated into the RISC or that the manufacturer had to sign the RISC in order for the manufacturer to compel arbitration under the RISC as a third party beneficiary, only that the RISC had to name the manufacturer as a person entitled to compel arbitration. (*Compare to* Opp. p. 6, ll. 7-10.)

This statement, quoted by Plaintiff in her brief, highlights why the Arbitration Agreement in this case is distinguishable from the RISC in *Ford Motor Warranty Cases*. The Lease in this case does exactly what the Court in *Ford Motor Warranty Cases* indicated the parties could have done to "articulate" that the manufacturer or distributor is a person entitled to compel arbitration by naming Mercedes-Benz explicitly in the Arbitration Agreement and designating it a Third Party Beneficiary at whose election arbitration can be compelled. The other three cases cited by Plaintiff are distinguishable for the same reason; each involved an RISC which did not explicitly name the manufacturer or distributor in the arbitration provision as a Third Party Beneficiary who could compel arbitration. (*Yeh v. Superior Court* (2023) 95 Cal.App.5th 264, 270–272; *Kielar v. Superior Court* (2023) 94 Cal.App.5th

614, 619; *Montemayor v. Ford Motor Co.* (2023) 92 Cal.App.5th 958, 969.)

Plaintiff addresses the language of the Arbitration Agreement, which explicitly designates Mercedes-Benz as a third party beneficiary of the Arbitration Agreement, only obliquely without engaging with the actual language of the provision quoted above. Plaintiff argues the language designating Mercedes-Benz as an express Third Party Beneficiary of the Arbitration Agreement is in the "fine print" (Opp. p. 5, l. 21), but the provision is in the same print size and font as the rest of the Lease except under a larger heading with larger font titled "Important: Arbitration Disclosures." It specifically designates Mercedes-Benz as a Third Party Beneficiary by class as the vehicle distributor and by name. (*Ford Motor Warranty Cases, supra*, 89 Cal.App.5th at 1339.)

C. Plaintiff's Argument Regarding No Consideration

Plaintiff also argues that there is no "consideration" by Mercedes-Benz for the Arbitration Agreement. She argues that Mercedes-Benz is not bound to accept arbitration because the provision is not mutual. (Opp. p. 6, l. 22 – p. 7, l. 6.) Plaintiff argues that if promises are exchanged as the consideration, then the promises must be mutual. (Opp. p. 6, ll. 1-6.)

The Arbitration Agreement is mutual. As reflected in the terms highlighted above, Plaintiff also has the right to compel Mercedes-Benz to arbitrate. (Leung Decl. Exh. 1 p. 4.) Mercedes-Benz and Plaintiff have exchanged mutual promises to arbitrate claims under the Lease and the Arbitration Agreement.

D. Application of Third Party Beneficiary Doctrine to Mercedes-Benz

The three requirements of the third party beneficiary doctrine are met. The fact the Arbitration Agreement expressly names Mercedes-Benz and grants it standing to compel arbitration (and to be compelled to arbitration by Plaintiff) demonstrates that Mercedes-Benz is likely to benefit, and was intended to benefit, from this provision of the Lease and that a motivating purpose of the Arbitration Agreement was in part to benefit Mercedes-Benz. (*Goonewardene, supra*, 6 Cal.5th at 829, 830.) Further, in the Court's judgment, allowing Mercedes-Benz to enforce the Arbitration Agreement is consistent with the parties' contracting goals in entering into the Arbitration Agreement as part of the Lease and the reasonable expectation of the parties as expressed in the terms of the Arbitration Agreement, as the Court in *Goonewardene* explained the third requirement for enforcement of a contract by a third party beneficiary. (*Id.* at 830-831.) The Arbitration Agreement explicitly contemplates that the parties would resolve by arbitration "any dispute or claim" arising out of or related to the Lease "or any resulting transaction or relationship arising out of the Lease" including with nonsignatory third parties. (Leung Decl. Exh. 1, p. 4.) The provision explicitly identifies the vehicle distributor, including Mercedes-Benz, as a party against whom arbitration could be enforced by Plaintiff as lessee or who could enforce the right to arbitrate. (Leung Decl. Exh. 1 p. 4.)

The Court's determination in this regard is reinforced and supported by the recently published decision, *Srivastava v. BMW of North America, LLC* (6th DCA August 4, 2026) 2026 Cal.App. LEXIS 520 *1, ordered published August 26, 2026. The Court in that case reversed a trial court order denying a motion to compel arbitration, concluding that a vehicle lease agreement which included an arbitration provision that identified the manufacturer BMW and designated BMW a third party beneficiary met the requirements for BMW to enforce the arbitration provision as a third party beneficiary of the contract, but remanding the case to the trial court to address the plaintiff's

unconscionability defense. (*Id.* at *8.)

Unconscionability Defense to Enforcement of Arbitration Agreement

Plaintiff contends the Arbitration Agreement is unenforceable because it is unconscionable. The burden of proof of unconscionability is on Plaintiff as the party resisting arbitration. (*Rosenthal, supra*, 14 Cal.4th at 413; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Plaintiff must prove both procedural and substantive unconscionability to render the Arbitration Agreement unenforceable, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910; *OTO, supra*, 8 Cal.5th at 125.)

1. Procedural Unconscionability

Plaintiff argues the agreement is procedurally unconscionable. Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra*, 8 Cal.5th at 126.) Where the agreement is a contract of adhesion, typically a non-negotiable form contract drafted by the party seeking to compel arbitration, there is some showing of oppression and a degree of procedural unconscionability. (*OTO, supra*, 8 Cal.5th at 126; *Pinnacle, supra*, 55 Cal.4th at 247.) Surprise for purposes of procedural unconscionability occurs " 'where the allegedly unconscionable provision is hidden within a prolix printed form.' [Citation omitted.]" (*Pinnacle, supra*, 55 Cal.4th at 247.)

Plaintiff contends there is procedural unconscionability because the Arbitration Agreement is a contract of adhesion. The Arbitration Agreement appears to be a standard form contract which would qualify as a contract of adhesion, but that fact alone gives rise only to low degree of procedural unconscionability. (*Sanchez, supra*, 61 Cal.4th at 915; *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493. 494 [contracts of adhesion "remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid," and "although adhesion alone generally indicates only a low degree of procedural unconscionability, the potential for overreaching in the employment context warrants close scrutiny of the contract's terms." (Emphasis added.)].)

Plaintiff has not submitted any evidence in opposition to the motion, including evidence regarding the circumstances surrounding her execution of the Arbitration Agreement. Plaintiff makes factual arguments regarding "high-pressure sales and lease environments such as auto dealerships," and Plaintiff having no choice but to accept the terms of the Lease as-is because all bargaining relates only to the price. (Opp. p. 8, ll. 16-20.) There is no evidence before the Court to support these factual arguments. Further, even accepting the argument that Plaintiff may not have been able to negotiate anything but the price under the Lease, this circumstance is not like that of a typical existing or prospective employee seeking employment with no bargaining power to reject or negotiate because of the pressure to obtain a job. Plaintiff has not presented evidence that she was under pressure to lease the Mercedes-Benz vehicle as opposed to other available vehicles.

Plaintiff also argues that there is procedural unconscionability because a copy of the American Arbitration Association arbitration rules were not provided to her. Again, this argument is not supported by any evidence that she did not receive a copy of the AAA rules. Even if the Court were to assume that fact, despite the lack of evidence, the failure to provide copies of the rules does not

increase the degree of procedural unconscionability based on oppression or surprise unless there is a substantively unconscionable provision in the AAA rules. (*See Baltazar v. Forever 21, Inc.* (2016) 62 Cal. 4th 1237, 1246.) "[T]he failure to provide a copy of the arbitration rules generally raises procedural unconscionability concerns only if there is a substantively unconscionable provision in the omitted rules." (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 590 [relying on *Baltazar, supra*, 62 Cal.4th at 1246.]) (*See also Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 249 ["*Baltazar* removed the nonprovision or nonattachment of the AAA rules as a basis for increasing the procedural unconscionability level, leaving only the failure to explain the meaning of arbitration. But 'simply because a provision within a contract of adhesion is not read or understood by the nondrafting party does not justify a refusal to enforce it. The unbargained-for term may only be denied enforcement if it is also substantively unreasonable.' [Citation omitted.]".])

Plaintiff also argues there is "surprise" because the Arbitration Agreement is hidden in the Lease. Plaintiff makes this argument under the heading of "substantive unconscionability," but surprise is a component of procedural unconscionability. (Opp. p. 8, l. 24 – p. 9, l. 11; *Pinnacle, supra*, 55 Cal.4th at 247.) The Court does not find that the Arbitration Agreement was hidden in the Lease form. It is set out in a separate section with a clear heading highlighting the section is "Important." (Lease p. 4.)

On this record, the Court finds only a low degree of procedural unconscionability.

2. Substantive Unconscionability

"Substantive unconscionability looks beyond the circumstances of contract formation and considers 'the fairness of an agreement's actual terms' [citation omitted], focusing on whether the contract will create unfair or one-sided results [citation omitted.]. Substantively unconscionable contractual clauses 'reallocate risks in an objectively unreasonable or unexpected manner.' [Citations omitted.]" (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493.) In making the unconscionability determination, "[t]he ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Sanchez, supra*, 61 Cal.4th at 911-12.) In general, in order to be found substantively unconscionable, the arbitration agreement provisions must be so overly harsh, unduly oppressive, and unreasonably favorable to the more powerful party that they undermine the neutrality of the agreement to arbitrate. (*Sanchez, supra*, 61 Cal.4th at 910-911, 913.) Something more than a party making a bad bargain is required. (*Pinnacle, supra*, 55 Cal.4th at 246 ["A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be 'so one-sided as to 'shock the conscience.' "].])

Despite the heading in Plaintiff's opposition asserting that the Arbitration Agreement is substantively unconscionable, the only ground Plaintiff raises for "substantive" unconscionability is that the Arbitration Agreement was allegedly hidden in the Lease, an argument the Court has rejected. (Opp. p. 8, l. 24 – p. 9, l. 11.) The argument is one of procedural unconscionability in any event.

Plaintiff has also argued in other portions of the opposition that the Arbitration Agreement was one-sided because Plaintiff could not enforce arbitration against Mercedes-Benz. The Court has rejected the argument, as the terms of the Arbitration Agreement quoted and emphasized above allow "you," meaning the lessee, to elect to arbitrate any claim or dispute arising under or related to the Lease and resulting transactions and relationships. (Leung Decl. Exh. 1 p. 4.)

Plaintiff contends, without supporting evidence, that she was not provided with a copy of the AAA Arbitration Rules which supports a finding of unconscionability, relying on the case *Harper v. Ultimo* (2003) 113 Cal.App.4th 1402. The Court in *Baltazar* explained decisions such as *Harper v. Ultimo*, stating with regard to the failure to provide the arbitration rules in that case that "the plaintiff's procedural unconscionability claim depended in some manner on the arbitration rules in question. [Citations omitted.] These cases thus stand for the proposition that courts will more closely scrutinize the substantive unconscionability of terms that were 'artfully hidden' by the simple expedient of incorporating them by reference rather than including them in or attaching them to the arbitration agreement. [Citation omitted.]" (*Baltazar, supra*, 62 Cal.4th at 1246 [emphasis added].)

Plaintiff has not cited any provision of the Arbitration Agreement itself or the AAA Arbitration Rules that is overly harsh, one-sided, contrary to public policy, or otherwise unfair. In contrast, in *Harper v. Ultimo, supra*, the Better Business Bureau arbitration rules not provided to the customer included provisions severely and unexpectedly restricting the remedies available to the complaining party. (*Harper v. Ultimo, supra*, 113 Cal.App.4th at 1405-1406 [construction contract damage cap of \$2,500 on top of limitation of remedies against contractor under construction project to refund, completion of work, repair costs, or out-of-pocket property damage substantively unconscionable].)

Plaintiff has not shown any substantive unconscionability, which is essential to the unconscionability defense, as both procedural and substantive unconscionability must be proven to render the Arbitration Agreement unenforceable. The motion is therefore **granted**.

16. 9:00 AM CASE NUMBER: MSC21-01948
CASE NAME: KATZ VS. ESKATON PROPERTIES
HEARING ON SUMMARY MOTION
FILED BY: ESKATON PROPERTIES, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is Defendants Eskaton Properties, Inc. and The Reutlinger Community's Motion (collectively "Defendants") for Summary Judgment or, in the alternative, Summary Adjudication ("MSA").

Procedural History and Factual Background

Plaintiffs Alexander Katz and Julia Mirman are the adult children of Marat Katz and the successors in interest and heirs of Marat Katz. Given the same last name of Alexander and Marat Katz, the Court will refer to each by their first name to avoid confusion. The Court means no disrespect in using this procedure. The Court notes Defendants' expert, Morgan Katz, M.D., also has the surname Katz, so the use of first names will hopefully decrease any confusion.

Marat was admitted to The Traditions memory care unit of The Reutlinger on March 27, 2020. (UMF 1). His admission diagnosis included mild cognitive impairment, unspecified dementia with behavioral disturbance, and unspecified focal traumatic brain injury. (UMF 4.) On August 19, 2020, during this stay at The Reutlinger, he was briefly hospitalized at San Ramon Regional Medical Center. (UMF 5.) He then returned to Traditions. (*Ibid.*)